Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

RESOLUTION NO. 160

RESOLUTION CONGRATULATING AND COMMENDING JUSTICE JAPAR B. DIMAAMPAO AS THE FIRST MARANAO, AND THE SECOND BANGSAMORO TO BE APPOINTED AS AN ASSOCIATE JUSTICE OF THE SUPREME COURT OF THE PHILIPPINES

WHEREAS, the 1996 Final Peace Agreement signed between the Moro National Liberation Front and the Government of the Republic of the Philippines stipulates that it shall be a policy of the National Government that at least one (1) justice in the Supreme Court and at least two (2) in the Court of Appeals shall come from the Autonomous Region;

WHEREAS, under the Comprehensive Agreement on the Bangsamoro, specifically the Annex on Power Sharing signed between the Moro Islamic Liberation Front and the Government of the Republic of the Philippines, as a matter of policy, the National Government shall ensure the participation and representation of the Bangsamoro in the national agencies and other national government instrumentalities, as far as practicable;

WHEREAS, Section 11, Article VI of Republic Act No. 11054, otherwise known as the Bangsamoro Organic Law provides that:

> *"As far as practicable, the Bangsamoro Government shall be represented in the departments, offices, commissions, agencies, and bureaus of the National Government that implement and enforce policies, programs, and projects of the National Government in the Bangsamoro Autonomous Region."*

WHEREAS, in the one hundred and twenty (120) years history of the Supreme Court of the Philippines, only one Bangsamoro, namely Justice Abdulwahid Bidin (1987-1995), was able to sit as a distinguished member of the highest court of the land;

WHEREAS, Justice Japar B. Dimaampao is a certified public accountant, a legal luminary who has been serving in the legal profession for more than three decades, and a proud son of Marawi City, Lanao del Sur;

WHEREAS, Justice Dimaampao is a consistent honor student and graduate of the University of the East, who passed the Certified Public Accountant (CPA) examination at the age of 19 in 1983, and the Bar Exams in 1987 respectively;

WHEREAS, Justice Dimaampao held the distinction of being the first and only Muslim senior state prosecutor, and in April 2004, he established himself as the youngest to be appointed at the age of 40 in the Court of Appeals, consequently serving the appellate court for seventeen (17) years;

WHEREAS, Justice Dimaampao is an institution in the field of commercial law and taxation, and a prominent expert in Shari'ah law who has been advocating for the creation of a separate Shari'ah appellate court that would cater to the needs of Muslims in the Philippines;

WHEREAS, for the most part of his career, Justice Dimaampao devoted his life as an educator, teaching Taxation, Commercial and Civil Law at the University of the East, University of Santo Tomas, San Beda College, and San Beda Graduate School of Law and Business;

WHEREAS, to his credit, Justice Dimaampao is also a renowned author of legal textbooks, all of which are utilized as an indispensable reference in the study of law, and are published both in the country and abroad;

WHEREAS, recognizing his contributions and expertise in Shari'ah Law, he was appointed as chair of the 2020 Committee on the Shari'ah Bar Examinations and continues to serve as a professor of Shari'ah Law at the Supreme Court's Philippine Judicial Academy;

WHEREAS, Justice Dimaampao is an exemplary member of the legal profession, having received numerous accolades, such as the Model Law Professor Award by the Huwarang Pilipino Program; a finalist for the Judicial Excellence Award; Chair Holder of the Pedro Conception Professorial Chair for Commercial Law; and a Hall of Famer and an Outstanding Alumnus of the University of the East;

WHEREAS, recognizing his expertise and his potential to serve as a distinguished member of the Supreme Court, since 2010, the Regional Legislative Assembly, Bangsamoro civil society organizations, and many other sectors have been pushing for his appointment, and for fourteen times, he applied and was shortlisted by the Judicial Bar Council as a candidate for Supreme Court Justice;

WHEREAS, in 2019, it was no less than Chief Minister Ahod B. Ebrahim of the Bangsamoro Autonomous Region in Muslim Mindanao who sent a personal recommendation to President Rodrigo Roa Duterte for the appointment of Justice Dimaampao in the Supreme Court;

WHEREAS, on July 29, 2019, the Bangsamoro Transition Authority adopted Resolution No. 20, endorsing the appointment of Court of Appeals Justice Japar B. Dimaampao as a Supreme Court Justice;

WHEREAS, on September 14, 2021, after years of waiting, Justice Japar B. Dimaampao was sworn in as the 191st Associate Justice of the Supreme Court of the Philippines, taking over the seat vacated by Justice Alexander Gesmundo when he assumed the position of the Supreme Court's Chief Justice;

WHEREAS, the Bangsamoro Transition Authority is grateful for this development and is optimistic of having another Bangsamoro as an Associate Justice of the Supreme Court of the Philippines:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority, to extend its utmost commendation and warmest congratulations to Honorable Justice Japar B. Dimaampao for being appointed as the first Maranao and the second Bangsamoro to be appointed as an Associate Justice of the Supreme Court of the Philippines.

RESOLVED FURTHER, to forward this Resolution to Honorable Justice Japar B. Dimaampao, for information.

ADOPTED, Safar 8, 1443/September 16, 2021.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. ALI PANGALIAN M. BALINDONG
Speaker

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